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The Minister for Legal Protection
P.O. Box 20301
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Date
14 December 2023

Our reference
z2023-02900
Your letter dated
6 July 2023

Contact person

Your reference
4725024

Subject
Advice on the draft Collective Decision on data processing by police and justice 2024

Dear Mr. Weerwind,

In your letter dated 6 July 2023, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft Collective Decision on data processing by police and justice (hereinafter: the draft).

The AP assesses whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the directive-compliant application of the law, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

- the draft being suitable to achieve the pursued objective of general interest or the protection of the rights and freedoms of others (1. suitability);
- the objective not being reasonably achievable in an equally effective manner by other means that infringe less on the fundamental rights of the data subjects (2. subsidiarity);
- the interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (3. proportionality);
- the draft being sufficiently clear and precise regarding the scope and being predictable in its application (4. legal certainty);
- the draft sufficiently indicating under which circumstances and conditions personal data may be processed, thus ensuring that the interference is limited to what is strictly necessary (5. substantive and procedural safeguards); and
- the draft being binding under national law (6. bindingness under national law).

The AP notes that there is no substantiation regarding the new basis for structural data provision to the Minister of Justice and Security for the benefit of the Scientific Research and Documentation Centre

(hereinafter: WODC), explaining why this new basis is necessary since data provision is already possible through the minister's consent (points 1 and 2). The draft does not limit the circumstances and conditions under which personal data may be provided, while in the current decision, the proportionality of the processing must be weighed each time (points 3 and 5). Furthermore, it is not made clear what the scope of the personal data and the frequency of provision of this data will be (point 4).

The AP objects on this point and advises that the procedure should not continue unless this is addressed.

Scope of the draft

The draft provides for a number of amendments to the Decision on judicial and criminal procedural data (hereinafter: Bjsjg), the Decision on police data (hereinafter: Bpg), the Decision on police data for special investigative services, the Decision on police data for extraordinary investigative officers, the Decision on seized items, and the Decision on mandatory police data. The draft regulates a number of new bases for the provision of judicial and criminal procedural data and police data. This concerns a basis for the provision of judicial data at the request of De Nederlandsche Bank (hereinafter: DNB) so that a statutory task can be performed and a basis for the provision of judicial data to the WODC for the purpose of policy information, scientific research, and statistics. Additionally, bases have been added for the provision of police data to a number of authorities for the proper execution of a specific task. This includes: the Central Agency for the Reception of Asylum Seekers, the National Cyber Security Centre, the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children, the complaints committee that handles complaints about investigative officers, supervisors under the Act on the Prevention of Money Laundering and Financing of Terrorism, the National Ombudsman, the Minister of Finance, the Police Academy, the chief of police, officials of the Judicial Institutions Service of the Ministry of Justice and Security, and the officials designated by the Minister of Finance from the Customs.

Advice

Justification of proportionality for the provision of judicial data to the Minister of Justice and Security (WODC)

The draft includes in (new) Article 31a a basis for the provision of judicial data to the WODC (part of the Ministry of Justice and Security) for the purpose of policy information, scientific research, and statistics. The explanation states that this possibility for data provision is not new because, under Article 31 of the Bjsjg, this data provision is already possible after the minister has granted consent. This new basis for structural data provision would be more appropriate since, in practice, there is already structural data provision through the updating and extension of the consent letters.¹

¹ Page 11 of the draft.

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The (new) Article 31a replaces the basis for the provision as included in Article 31 of the Bjsjg for the WODC. Provision based on the existing Article 31 of the Bjsjg contains several safeguards related to the principle of proportionality. Article 31, paragraph 3, requires that the consent of the minister is only granted if a) the policy information or the research serves the public interest; b) the organization providing the data is not unduly burdened; c) the policy information is incomplete without the relevant data or the research cannot be conducted without the relevant data, and d) the personal privacy of the individuals concerned is not disproportionately harmed. This is a test that takes place each time there is an individual request for data. Article 31, paragraph 4, includes a basis for imposing conditions on the provision. These conditions may include a limitation that is necessary to ensure the proportionality

of the processing. In the draft, this test and the associated safeguards are omitted.

The regulation does not contain a description of the data being provided, the frequency of the provision, or the scope of the data or the size of the group of individuals involved. All data can be provided to the WODC for the purpose of policy information, scientific research, and statistics. The importance of this structural data provision cannot be adequately weighed against the greater infringement on the right to protection of personal data that is made with structural provision.

The (new) Article 31a contains no safeguards nor the possibility to impose limitations on the provision of data. It is unclear whether the limitation regarding contacting the individuals concerned, as included in Article 31, paragraph 6, of the current decision, remains applicable for the WODC.

The explanation states that in practice, the WODC pseudonymizes the data so that the data is only used in encrypted form for scientific research. Only where necessary for specific research are data traced back to be linked to other data. This measure, important from the perspective of personal data protection, also weighs heavily from the perspective of proportionality. However, this is not enshrined in the regulations and is therefore not a 'safeguard'. Furthermore, pseudonymization is particularly effective when the data is provided in pseudonymized form. The recipient then does not have the ability to trace the data back themselves.

The AP advises against structural provision or making provision in pseudonymized form a mandatory main rule and to adequately justify the proportionality of the whole in the explanation.

****Processing of data by specific employer****

The draft regulates that the provision of police data by the 'data controller' is possible for the purpose of determining and addressing occupational diseases, workplace accidents, or PTSD as part of the employer's imposed task. The draft mentions that the provision takes place to the data controller. That concept is

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defined in Article 1 of the Police Data Act.² The explanation confirms that the provision for that purpose to the Chief of Police, the Board of Prosecutors General, and Our Minister of Defence, in their capacity as employer, is possible. The received data is not subject to Directive 2016/680/EU but to the GDPR.³ The recipients of the data do not receive it as a data controller as referred to in the Police Data Act, but as employers in the context of their responsibilities under the Working Conditions Act. To express this correctly, it is necessary not to seek alignment with the concept of 'data controller' in the sense of the Police Data Act, but to explicitly name the recipients, for example. A provision to other employers of investigative officers⁴ also requires clarification. To sufficiently ensure the principle of transparency⁵ and the principle of minimal data sharing⁶, the text of the draft should include to which persons and/or entities the data may be provided.

The AP advises to explicitly mention in the text of the draft which organizations, in their capacity as employer, can receive police data for the purpose of determining and addressing occupational diseases, workplace accidents, or PTSD as part of the task imposed on the employer under Chapter 2 of the Working Conditions Act.

Workload AP

It is likely that the draft, due to the expansion of provisions, will require the AP to make limited additional efforts. This effort has not yet been factored into the financing of the AP. This must be addressed prior to the entry into force.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl after two

weeks.

Yours sincerely,
Dutch Data Protection Authority,

Aleid Wolfsen
Chairman

2 data controller: this is with:

1°. the police: the Chief of Police, as referred to in Article 27 of the Police Act 2012;

2°. the national investigative service: the Board of Prosecutors General;

3°. the Royal Military Constabulary: Our Minister of Defence;

3 Because the purpose of processing the received personal data is not: the prevention, investigation, detection, or prosecution of criminal offenses or the enforcement of penalties, including protection against and prevention of dangers to public safety. See Article 1, first paragraph of Directive 2016/680/EU.

4 For example, to the employers of extraordinary investigative officers based on the Decree on Police Data for Extraordinary Investigative Officers.